

HOUSE BILL 1748

By Wright

AN ACT to amend Tennessee Code Annotated, Section 55-10-419, relative to the electronic monitoring indigency fund.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-10-419(j), is amended by deleting subdivisions (2) and (3) and substituting:

(2) The person ordered to use an ignition interlock device shall provide the selected provider and the clerk of the court that has jurisdiction over the person with:

(A) Documentation demonstrating that the person is either qualified to receive or is receiving funds on the date the person was ordered to use the device from at least one (1) of the sources listed in subdivision (h)(4); and

(B) An authorization and consent for the state treasurer to obtain or access documentation or information from state or federal agencies verifying that the person is either qualified to receive or is receiving funds on the date the person was ordered to use the device from at least one (1) of the sources listed in subdivision (h)(4).

(3) In addition to providing the information pursuant to subdivision (j)(1), providers shall also provide:

(A) The state treasurer with the documentation and information referenced in subdivision (j)(2), for persons ordered to use an ignition interlock device; and

(B) The respective local government with the affidavit of indigency, and other information considered by the court to determine whether the person is indigent, for a person ordered to use an alternative device.

SECTION 2. Tennessee Code Annotated, Section 55-10-419(j), is amended by adding a new subdivision:

(4) In order to verify that a person is receiving or is eligible to receive funds from at least one (1) of the sources listed in subdivision (h)(4), the state treasurer is authorized to enter into memoranda of understanding with appropriate state agencies. The appropriate state agencies, as identified by the state treasurer, shall fully cooperate with the exchange of documentation or information, as permitted by applicable laws and rules.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.